

2017 P L C (C.S.) 564

[Lahore High Court]

Before Jawad Hassan, J

BILAL AKHTAR and others

Versus

PRESIDENT/CHIEF EXECUTIVE OFFICER and 6 others

Writ Petition No.2929 of 2011, heard on 20th December, 2016 .

Civil service---

---Employees of Pakistan Telecommunication Company Limited retired under voluntary separation scheme sought direction for increase in the benefit of anomaly---Scope--- Voluntary separation scheme was optional for the petitioners to accept the same or otherwise--Petitioners having exercised option to retire from service on and from cutoff date, could not be treated at par with the employees who did not exercise such option---Employees were paid emoluments in full and final for the period they worked after they had opted for retirement under voluntary separation scheme they had received benefits accordingly---Terms and conditions of scheme were circulated amongst all the employees---Terms and conditions of scheme were opted by the petitioners/ employees voluntarily without any coercion or duress--Petitioner/ employees after signing and thumb marking acknowledged and accepted the terms and conditions of the scheme---Office letters had specified the amount to be received and same constituted to be full and final amount under voluntary separation scheme---Petitioners/ employees after accepting the said amount could not turn around and seek additional benefits---Nothing was on record that scheme had been executed by the employees under duress or coercion rather they had received full and final payment after accepting the same voluntarily---Employees were estopped from challenging/questioning the terms of voluntary separation scheme---Constitutional petition was dismissed in circumstances.

Azad Kashmir Government Cooperative Bank Ltd., Muzaffarabad v. Ch. Muhammad Akram 2014 PLC (C.S.) 639; State Bank of Pakistan v. Imtiaz Ali Khan 2012 SCMR 280 and State Bank of Pakistan v. Khaibar Zaman Khan 2004 PLC (C.S.) 1213 rel.

Tahseen Haider Kazmi for Petitioner.

Mirza Amir Beg for Respondents.

Date of hearing: 20th December, 2016.

JUDGMENT

JAWAD HASSAN, J.--- Through the instant Constitutional petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, the Petitioners have sought a direction to the Respondents for increase in the benefit of anomaly towards the Petitioners and the VSS Package offered to the Petitioners be revised after necessary pay fixation.

2. The precise facts revealing from the petition are that the Petitioners were employees of Telephone and Telegraph (T&T) and after the Telecommunication (Re-Organization) Act, 1996 the services of the Petitioners were transferred to Pakistan Telecommunication Company Limited without their consent. It is alleged that the Respondents launched a Scheme known as "Voluntary Separation Scheme" (VSS) and the Petitioners opted to avail the same. It is further alleged that the Petitioners were retired from service in the year 2008 under the said VSS Scheme and were allowed to draw the pension as per the respective Pension Rules and Regulations. It is further stated that due to the fact that some senior employees were drawing less salary as compare to their juniors working in the next grade, the Government of Pakistan established an anomaly w.e.f. 1994 when the modified pay scales were introduced vide Notification bearing O.M. No.F.1(2)-Imp/94(i) dated 15.06.1994 and letter No.PA&P.6-3/94. It is also alleged that the Petitioners were held entitled to the said anomaly as they were drawing less salary as compare to their juniors. It is further alleged that to get benefit from the said anomaly the Petitioners approached the Respondents through applications dated 19.11.2009 and 14.04.2010 which were forwarded to the Headquarter but still no action was taken on the same and the matter is being delayed on the one pretext or the other. Hence, the instant petition was lodged by the Petitioners.

3. In pursuance of order dated 14.02.2011 comments were filed on behalf of the Respondents. Thereafter, certain documents were also made part of the file through C.M. No.1144/2014 filed by the Respondents.

4. Learned counsel for the Petitioners submitted that a discriminatory attitude has been adopted towards the case of the Petitioners as the benefit of anomaly is being extended to the employees who have knocked the door of the Court through W.P. No.4496/2007 but the Petitioners are being deprived of the same. Learned counsel further contended that under Article 25 of the Constitution of the Islamic Republic of Pakistan, 1973 the Petitioners are entitled to be dealt with the principle of equal protection of law. Learned counsel also maintained that as the pension book was under the possession of the Respondents who deliberately deprived the Petitioners from the benefit of anomaly. Learned counsel also added that the VSS Package condition that the payment is full and final and the Petitioners would have no right to agitate for any purpose, is void ab initio and against the law.

5. Learned counsel for the Respondents vehemently contested the arguments advanced by the learned counsel for the Petitioners and contended that the Petitioners are not aggrieved persons as they themselves opted to avail the VSS Scheme and now cannot be estopped by their words and conduct. Learned counsel also contended that by accepting the terms and conditions of VSS Scheme the Petitioners have received full and final payment and therefore, the same has become past and closed transaction. Learned counsel also added that as the Petitioners are not aggrieved persons being not at par with other employees who have been extended the same benefit, as such question of discrimination does not arise. Learned counsel further argued that the judgment relied upon by the Petitioners is totally distinguishable from the case of the Petitioners, hence having no application to the present case. Finally, the learned counsel prayed for dismissal of the Petition.

6. The crux of the grievance of this Petition is that the Petitioners seek direction to the Respondents to enhance the benefit of anomaly and that the VSS Package be revised after fixation of their pay. From the perusal of record it is observed that it is a Scheme which is totally voluntary in nature and was optional for the Petitioners to accept it or otherwise. The Petitioners having exercised option to retire from service on and from cutoff date and on such

score could not be treated at par with those employees who did not exercise such option. It is also observed that Petitioners were paid emoluments in full and final for the period they worked after they had opted for retirement under VSS and had received benefits accordingly. The terms and conditions of the Scheme were circulated amongst all the employees including the Petitioners who thereafter executed Voluntary Separation Scheme. The terms and conditions of the Scheme were opted by the Petitioners voluntarily without any coercion or duress and the terms/clauses mentioned therein are accepted. The pension papers of the Petitioners filed by the Respondents show that the Petitioners after signing and thumb marked, acknowledged and accepted the terms and conditions of the same.

7 In the case of Azad Kashmir Government Cooperative Bank Ltd., Muzaffarabad v. Ch. Muhammad Akram (2014 PLC (C.S.) 639 Supreme Court Azad Kashmir) it was held that where a golden handshake scheme was involved, it was the employee who himself volunteered and the employee, after accepting and receiving the retirement benefits, was estopped from challenging the same through writ petition as he himself was instrumental in his retirement benefits through the said scheme. Employee had given final consent after the perusal of the conditions laid down in the circular. Employee, after receiving the benefits of retirement, filed review petition, whereby he instead of taking ground that better terms and conditions had not been awarded, he took a different stand that he should have been retired in grade B-18. Such was an afterthought and new stand, he could not be allowed to turn round and take a new stand contrary to one taken previously.

8. Moreover, where office letters had specified the amount to be received and the same constituted to be the full and final amount under the VSS and upon acceptance of such amount the Petitioner cannot turn around and seek additional benefits. If the terms were not acceptable to the Petitioners, then they should not have taken them at the outset since, no element of coercion was involved here.

9. Nowhere, in the record it is mentioned that the Scheme has been executed by the Petitioners under duress or coercion; rather the Petitioners have admitted that they have received full and final payment after accepting the Scheme voluntarily. The only objection raised is to the extent of waiver of Petitioners' right to agitate the same which cannot be answered into positive as after receiving all payment it has become past and closed transaction and cannot be said to be void and against the law, hence they are estopped from challenging/questioning the terms of VSS. In similar circumstances the Hon'ble Supreme Court of Pakistan in case titled State Bank of Pakistan v. Imtiaz Ali Khan (2012 SCMR 280) observed that Voluntary Separation Scheme was voluntary and was not imposed upon employees and no one was compelled or was under duress, pressure or coercion to opt for the same and in such like cases the employee who opts for the Scheme is bound by it and could not claim the benefits to which he is not entitled after retirement as he does not retire under the regular term of service. Similarly, in State Bank of Pakistan v. Khaibar Zaman Khan (2004 PLC (C.S.) 1213) the Hon'ble Supreme Court of Pakistan observed that where the employee opted for Golden Handshake Scheme the Supreme Court could not make any deletion, amendment, addition or insertion in the Scheme when the same was free from ambiguity and did not call for scholarly interpretation.

10. Moreover, this Court in W.P. No.21228 of 2012 has already coped with the identical issue while dismissing the same claim of the Petitioners and observed as follows:

"Admittedly the Petitioners retired on 26.12.2007 pursuant to the VSS scheme. Admittedly, they received VSS package and made a declaration upon receipt of that package that they have no claim pending against the Respondent department and there is no departmental dues outstanding against them. Admittedly, payments were made to the petitioners pursuant to VSS scheme: However, the petitioners now want to take the benefit of order dated 31.03.2008 passed in W.P. No.4496/2007. VSS scheme is a contractual relationship between the Petitioner's and the Respondents. Having received their package from the Respondents, the Petitioners since 2007 have no relationship with the Respondents. Any benefit made available to the employees of the Respondents subsequent to the order dated 31.03.2008 passed in W.P. No.4496/2007 is not available to the Petitioners because their retirement was on the basis of a contractual arrangement, which they consented to and against which they took all the benefits from the Respondents. The relationship between the Petitioners and the Respondents came to an end as per terms and conditions of the contract. The respondents are not obligated to revise the emoluments granted to the Petitioners at the time as per their existing pay scales. Learned counsel for the Petitioners has argued that the declaration made on the wrong facts and unknown facts were not applicable to the petitioners. I am of the opinion that the voluntarily scheme closed the relationship between the Petitioners and the Respondents and after availing the VSS scheme the petitioners have no claim on the Respondents. The benefit of order dated 31.03.2008 passed in W.P. No.4496/2007 would only be available to those, who have a continuing relationship with the Respondents and who are receiving regular pension from the Respondents. Therefore, no illegality is made out. Petition Dismissed."

11. In view of above facts and circumstances, the instant petition is hereby dismissed.

ZC/B-25/L Petition dismissed.